

1.

CASE #	CASE NAME	HEARING NAME
CVRI2500616	RESILIENCE HOSPICE VS LOFTON	MOTION TO ASCERTAIN VALUE OF SHARES

Tentative Ruling: Plaintiffs Resilience Hospice’s Motion to Ascertain Value of Shares is granted; Court confirms the \$0.00 valuation and Defendants are ordered to transfer to Resilience Hospice their shares in Resilience Hospice, totaling 4900 shares free and clear of any claims, interests, liens, or encumbrances by June 22, 2026.

“In response to a corporate shareholder filing for involuntary dissolution, section 2000 prescribes the procedure for a shareholder defendant, or the corporation, to avoid dissolution by purchasing the shares of the party who initiated dissolution.” (*Crane v. R. R. Crane Inv. Corp.* (2022) 82 Cal.App.5th 748, 756.) “The objective of section 2000 is to provide an alternative to dissolution through a buy-out by the holders of 50 percent or more of the shares of the corporation.” (*Trahan v. Trahan* (2002) 99 Cal.App.4th 62, 75.)

Corp. Code § 2000(a) provides:

[I]n any suit for involuntary dissolution, or in any proceeding for voluntary dissolution initiated by the vote of shareholders representing only 50 percent of the voting power, the corporation or, if it does not elect to purchase, the holders of 50 percent or more of the voting power of the corporation (the “purchasing parties”) may avoid the dissolution of the corporation and the appointment of any receiver by purchasing for cash the shares owned by the plaintiffs or by the shareholders so initiating the proceeding (the “moving parties”) at their fair value.

Upon application of the purchasing parties, the court “shall stay the winding up and dissolution proceeding and shall proceed to ascertain and fix the fair value of the shares owned by the moving parties.” (Corp. Code § 2000(b).) Following an appraisal, the court “shall enter a decree which shall provide in the alternative for winding up and dissolution of the corporation unless payment is made for the shares within the time specified by the decree.” (Corp. Code § 2000(c).)

The Appraiser submitted her Conclusion of Value as of the April 4, 2025 valuation date to determine the Fair Value of a 49% equity interest of Lofton Enterprises, Inc. dba Resilience Hospice. (Plaint., Ex. A.) The Appraiser noted that in April 2025, the Company’s Medicare billing privileges were revoked following a Medicare administrative action related to an Additional Documentation Request (ADR). (Hallstrom Decl., Ex. A, p. 2.) “Given that Medicare and Medi-Cal represent the primary reimbursement sources for hospice services, loss of these billing privileges materially impairs the Company’s ability to operate as a going concern.” (Id.) The Appraiser listed \$1,405,757 in liabilities as of the valuation date, including \$425,000 for loans from Christine Ojeda. (Id, p. 4.) The Appraiser indicated that, as of the Valuation Date, the Company’s liabilities exceeded the net realizable value of its assets, resulting in insolvency on a balance sheet basis. (Id.) The Appraiser concluded that the Fair Value of a 49% equity interest in Resilience as of April 4, 2025 is \$0. (Id.)

Defendants do not dispute this conclusion. However, they request clarification regarding whether the \$425,000 loan from Ojeda was received prior to the valuation date since only liabilities as of that date should be included in the valuation. In her declaration dated April 14, 2026, Ojeda state, “I have loaned the Company over \$425,000 after the valuation date to cover the Company’s on-going expenses, such as real estate leases, payroll to doctors and employees, and medical supplies.” (Ojeda Decl., ¶ 6.) In her Supplemental Addendum to Conclusion of Value, the Appraiser clarified that the original valuation included the \$425,000 based on information received from management. (Supp. Decl. of Hallstrom, Ex. A.) However, subsequent information provided by counsel indicates that \$132,179 was advanced prior to the valuation date with the additional advance occurring after. (Id.) The Appraiser indicated that this clarification does affect the conclusion and Resilience remains insolvent even if only \$139,179 from Ojeda is included in the liabilities. (Id.)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504523	BROWN VS EQUITY LIFESTYLE PROPERTIES, INC.	ANTI-SLAPP MOTION

Tentative Ruling: Defendant MHC Thousand Trails Limited Partnership’s ANTI-SLAPP Motion is denied without prejudice.

Plaintiff is ordered to file an amended complaint within 30 days.

The Legislature enacted the anti-SLAPP procedure due to “a disturbing increase in lawsuits brought primarily to chill the valid exercise of constitutional rights of freedom of speech and petition for the redress of grievances.” (C.C.P. § 425.16(a).) It is a two-step process where the moving defendant has the burden to first establish that the allegations or claims arise from protected activity, and then the plaintiff has the burden to demonstrate that the claim has minimal merit. (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009.)

“SLAPP law is silent as to the issue of amendment.” (*Oakland Bulk v. Oversized Terminal, LLC v. City of Oakland* (2020) 54 Cal.App.5th 738, 750.) However, “the purpose of the anti-SLAPP statute is to unmask SLAPP actions masquerading as ordinary lawsuits and to resolve them expeditiously.” (*Ibid.*)

In *Oakland Bulk*, the defendant filed a demurrer and motion to strike that were set for hearing weeks before the scheduled hearing date for its SLAPP motion. (*Oakland Bulk, supra*, 54 Cal.App.5th at 751.) The appellate court rejected the defendant’s argument that “the preferred procedure is to decide the SLAPP motion first, before the demurrer.” (*Ibid.*) Rather, the appellate court held that the trial court judge did not err in allowing plaintiffs to amend their complaint and defer ruling on the SLAPP motion, which would require analyzing “what would have been a superseded complaint,” until another motion was forthcoming. (*Id.* at 750-751.) The appellate court concluded that “proceeding in